

All figures sourced from Government of Alberta open data, Statistics Canada, federal statute, UN treaty, and peer-reviewed research.

Building Up: A Blueprint for the Alberta Accessibility and Inclusion Act

Part Three — The Alberta Accessibility and Inclusion Act: A Constructive Blueprint

Section 3.1 — Design Philosophy and Foundational Choices: What the Alberta Accessibility and Inclusion Act Must Do

Parts One and Two have made the case. Part One documented the architecture Alberta has built around persons with disabilities — the FSCD program for families of children with disabilities, the K-12 educational system whose engineered repudiation of inclusion was documented in Section 1.3a, the transition into adulthood through PDD and AISH and the ADAP succession announced for July 1, 2026, the caregiver dimension that operates across the lifecycle, and the WCB exception that holds together while the rest of the architecture fails. Part Two documented the comparator landscape: the federal *Accessible Canada Act* establishing the floor, five provincial accessibility statutes building above the federal floor in their respective provincial jurisdictions, the *United Nations Convention on the Rights of Persons with Disabilities* establishing the international substantive standard, and Alberta's structural-political isolation as the only English-speaking Canadian province west of Quebec without comprehensive provincial accessibility legislation. The two Parts together establish that comprehensive accessibility legislation is structurally feasible, politically achievable across every governing tradition that has held provincial government in Alberta, internationally required by the human rights framework Canada has bound itself to, and substantively necessary to address the documented operational failures of the current Alberta architecture.

Part Three answers the constructive question. *What should the Alberta Accessibility and Inclusion Act actually do?*

The answer is a substantive specification: detailed enough that legislative drafting could begin from it directly, grounded throughout in the documented comparator record Part Two established and in the lifecycle analysis Part One developed, sufficient to guide the political and operational decision-making the legislation's enactment will require. The specification is not a technical legislative draft; the technical drafting is the work of legislative counsel and parliamentary draftspersons. The specification is the substantive blueprint within which the technical drafting would proceed. The blueprint is structured as nine sections plus a Source Index. Section 3.1, the present section, sets out the design philosophy and foundational choices that anchor everything Part Three develops. Sections 3.2 through 3.9 develop the substantive content the foundational choices specify.

The section is organized into four parts. Part one sets out the design philosophy: the substantive principles that orient the legislation. Part two sets out the ten foundational design choices: the specific structural decisions that follow from the design philosophy and that distinguish the proposed Alberta legislation from comparators where the choices differ. Part three sets out what the blueprint will *not* do: the legitimate limits of the substantive specification, to prevent overreach into work that belongs to other instruments or other actors. Part four bridges to the substantive sections that follow.

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The Design Philosophy

The legislation Part Three proposes is grounded in five substantive principles. The principles are not aspirational statements; they are the operational orientations within which every design choice in the legislation must be evaluated. Where a design choice serves the principles, the choice belongs in the legislation. Where a design choice is structurally inconsistent with the principles, the choice does not belong in the legislation. The principles are accordingly the substantive framework within which the legislation's design integrity is maintained.

Substantive equality, not formal equality. The legislation is grounded in the substantive-equality framework that Section 15 of the *Canadian Charter of Rights and Freedoms* established and that Canadian human-rights jurisprudence has developed over the four decades since the Charter's enactment. Substantive equality requires the affirmative removal of barriers, the affirmative provision of accommodation, and the affirmative redesign of systems that produce disproportionately negative outcomes for protected groups. Substantive equality is operationally distinct from formal equality, which only requires that policies and practices not explicitly distinguish on protected grounds. The Alberta architecture documented in Part One has, on the documented record, frequently delivered formal equality (programs are formally available to persons with disabilities) without delivering substantive equality (the programs are not designed in ways that recognize the operational realities of disability and accordingly produce disproportionately negative outcomes). The legislation's substantive design must orient toward substantive equality at every operational level, with the understanding that equality of formal access is necessary but not sufficient.

Systemic transformation, not bolt-on accommodation. The legislation is grounded in the General Comment No. 4 substantive interpretation of Article 24 (Part Two Section 2.7) which establishes that *inclusion involves a process of systemic reform embodying changes and modifications in content, teaching methods, approaches, structures, and strategies in education to overcome barriers with a vision serving to provide all students of the relevant age range with an equitable and participatory learning experience and the environment that best corresponds to their requirements and preferences*. The substantive principle the General Comment articulates extends beyond education to every domain the legislation will address. Inclusion is not the bolt-on accommodation of persons with disabilities to systems designed without them in mind; inclusion is the systemic redesign of the systems themselves to operate in ways that recognize the full diversity of the population the systems are intended to serve. The distinction is operationally critical. Bolt-on accommodation produces categorical-program architecture (Part Two Section 2.8). Systemic transformation produces accessibility-standards architecture. The legislation must orient toward systemic transformation as the substantive goal, with the categorical-program architecture maintained as the income-and-support layer that operates alongside but does not substitute for the accessibility-standards layer.

The lifecycle as integrative principle. Part One Section 1.2 established the lifecycle frame as the substantive analytic structure within which the disability architecture's failures are most clearly visible. The same lifecycle frame must structure the legislation's substantive provisions. Accessibility barriers operate differently at different lifecycle stages: the barriers a child with disabilities encounters in the K-12 system

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are structurally distinct from the barriers a young adult encounters in the transition from K-12 to post-secondary, vocational training, or supported employment, which are themselves structurally distinct from the barriers a working-age adult encounters in employment, housing, and community-based services, which are themselves structurally distinct from the barriers an aging adult or a person whose disability has progressed encounters in healthcare access, long-term-care availability, and end-of-life support. The legislation's substantive provisions must address all lifecycle stages, must recognize the structural transitions between stages as moments at which barriers compound, and must ensure that the legislation's protections operate continuously across the lifecycle rather than only at specific lifecycle moments.

International human rights compliance as floor, not ceiling. The legislation is grounded in Canada's binding obligations under the United Nations *Convention on the Rights of Persons with Disabilities* (Part Two Section 2.7), under the United Nations *Declaration on the Rights of Indigenous Peoples* (Part Two Section 2.5, on the British Columbia precedent), and under the Canadian-constitutional human-rights framework. The international and constitutional obligations establish the floor below which the legislation cannot fall. They do not establish the ceiling above which the legislation cannot rise. Where the operational record documented in Parts One and Two establishes that the international floor is insufficient to address the substantive Alberta failures, the legislation must rise above the international floor. The funding-starvation finding in Section 1.3a is the clearest example: the international human rights framework requires inclusive education as a structural baseline, but the Alberta funding shortfall is the structural mechanism through which inclusion is being denied. The legislation must address the funding mechanism, not only the inclusive-education obligation. Rising above the international floor is the substantive expression of the principle that international compliance is the starting point of provincial-government disability policy rather than the end point.

Disability-community co-authorship, not consultation-on-demand. The legislation is grounded in Article 4(3) of the United Nations *Convention on the Rights of Persons with Disabilities*, which requires State Parties to *closely consult with and actively involve persons with disabilities, including children with disabilities, through their representative organizations* in the development and implementation of legislation and policies affecting persons with disabilities. The Article 4(3) substantive obligation is operationally more demanding than the consultation-on-demand model that has frequently characterized Alberta provincial-government engagement with the disability community. Article 4(3) requires close consultation and active involvement. The substantive standard establishes the disability community as co-author of the legislation rather than as constituency to be informed of legislation already drafted. The principle's operational expression in the legislation is a structural consultation requirement that operates throughout the legislative-development process, throughout the standards-development process, throughout the implementation process, and throughout the periodic review process. The legislation cannot be drafted *for* the disability community without being drafted *with* the disability community at every stage at which substantive design decisions are made.

The five principles operate together. They are not alternatives among which trade-offs must be made; they are mutually reinforcing requirements that together constitute the substantive design framework within which the legislation must be developed. The ten foundational design choices that follow are the operational implementation of the five principles.

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The Ten Foundational Design Choices

The substantive design of the *Alberta Accessibility and Inclusion Act* requires ten foundational choices. The choices are the structural decisions that distinguish the proposed Alberta legislation from comparator approaches where the choices differ, that respond to the specific Alberta failures documented in Part One, and that align with the international human rights obligations documented in Part Two. The choices are presented here in summary form; the substantive content of each choice is developed in the relevant subsequent sections of Part Three.

Choice 1: Comprehensive single-statute approach. The legislation must be a comprehensive single statute rather than a series of bolt-on amendments to existing legislation or a sectoral approach addressing specific accessibility domains in isolation. The comprehensive approach is the structural model the federal *Accessible Canada Act* and all five comparator provincial statutes have adopted. The substantive rationale is that accessibility barriers operate across multiple sectors simultaneously; a sectoral approach produces gaps and inconsistencies at the boundaries between sectors. The comprehensive approach also enables the development of consistent definitions, consistent standards-development processes, consistent enforcement architectures, and consistent reporting cycles across the entire legislative framework. The choice is substantive rather than aesthetic; the comprehensive approach is operationally superior to the alternatives.

Choice 2: Substantive-standards model rather than categorical-program model. The legislation must operate as a substantive-standards framework that establishes binding accessibility standards across multiple substantive areas, not as a categorical-eligibility program that determines who qualifies for individual supports. The distinction was developed in Part Two Section 2.8: the Alberta architecture documented in Part One is a categorical-program architecture (AISH, PDD, FSCD, ADAP, WCB); the comparator architectures documented in Part Two are substantive-standards architectures. The two are complementary, not substitutable. The proposed legislation must build the substantive-standards architecture that Alberta has not yet built, while the categorical-program architecture that Alberta has built remains operational for the income-and-support functions it serves. The substantive-standards model is the structural-equality layer; the categorical-program model is the income-and-support layer; both are required for comprehensive disability policy.

Choice 3: Lifecycle integration across substantive-standards areas. The legislation must integrate the lifecycle frame across the substantive-standards areas, ensuring that the standards developed in each area address the lifecycle stages relevant to that area and that the transitions between lifecycle stages are addressed at the boundaries between standards areas. The choice operationalizes the third design principle. The legislation cannot be structured around standards areas that operate independently of the lifecycle frame; the standards must be developed with explicit attention to how they operate at each lifecycle stage and at each transition.

Choice 4: Article 24 operationalization within an education-area standard. The legislation must include education as a stand-alone substantive-standards area on the Nova Scotia precedent (Part Two Section 2.4), and the education-area standard must operationalize Article 24 of the United Nations *Convention on the Rights of Persons with Disabilities* in the substantive provisions. The Article 24 operationalization must address the engineered repudiation documented in Section 1.3a: the funding

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starvation as structural mechanism, the segregated-classroom expansion as substantive violation, the *earn inclusion* rhetoric as political cover, the consultation gap as procedural enabler, and the seclusion-room expansion as compounding harm. The education-area standard is developed in detail in Section 3.4. The substantive implication is that the legislation does not treat education as a residual or implicit area; education is a central substantive-standards area that operationalizes the international human rights obligation Canada is bound to.

Choice 5: Indigenous-rights structural integration on the British Columbia precedent. The legislation must integrate Indigenous-rights frameworks at the structural-statutory level, on the model of Section 19 of the *Accessible British Columbia Act* (Part Two Section 2.5). The integration must include statutory consideration of the United Nations *Declaration on the Rights of Indigenous Peoples* in standards development, recognition of Section 35 of the *Constitution Act, 1982* as a foundational instrument, and structural acknowledgment that the Truth and Reconciliation Commission's Calls to Action and the National Inquiry into Missing and Murdered Indigenous Women and Girls' Calls for Justice apply to disability policy in Alberta as they apply to all Canadian provincial-government policy. The Indigenous-rights integration recognizes the substantial Indigenous disability community in Alberta documented in the campaign's separate 195-page Indigenous Disability Alberta evidentiary record, and operationalizes the British Columbia precedent that Indigenous-rights integration in accessibility legislation is structurally feasible and operationally workable.

Choice 6: Article 4(3) consultation as procedural baseline. The legislation must establish Article 4(3)'s close consultation and active involvement as the procedural baseline for all legislative-development, standards-development, implementation, and review processes. The procedural baseline is operationally demanding. It requires structural consultation infrastructure (a consultation council with disability-community representation, mandatory consultation timelines, public reporting on consultation outcomes), it requires substantive consultation engagement (consultation on substantive design decisions, not consultation on already-drafted text), and it requires the closure of the consultation gaps documented in Sections 1.3a and 2.7a (the Class Size and Complexity Cabinet Committee and the Aggression and Complexity in Schools Action Team operating without disability-community representation). The Article 4(3) procedural baseline is developed in detail in Section 3.6.

Choice 7: Funding-floor and EA-staffing-ratio provisions. The legislation must include structural-funding provisions that establish minimum-funding floors below which provincial-government educational and disability-services expenditure cannot fall, and minimum-staffing ratios for educational assistants in general education classrooms sufficient to deliver inclusive education without forcing displacement to segregated settings. The provisions are a substantial departure from the comparator legislation. None of the federal *Accessible Canada Act* or the five provincial accessibility statutes includes structural-funding provisions of this kind. The departure is justified by the documented Alberta record. The funding-starvation finding in Section 1.3a establishes that the structural mechanism through which inclusive education is being denied in Alberta is the chronic underfunding of the K-12 system. Comparator legislation that addresses inclusive education without addressing the funding mechanism is, on the documented Alberta evidence, insufficient to deliver Article 24 compliance. The Alberta legislation must address the funding mechanism. The choice is developed in Section 3.7.

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Choice 8: Independent enforcement architecture with administrative monetary penalties. The legislation must include an independent enforcement architecture comprising inspectors with statutory authority, compliance orders enforceable through provincial enforcement mechanisms, administrative monetary penalties at levels sufficient to produce operational compliance behaviour, and tribunal-review procedures for organizations subject to compliance orders or penalties. The architecture is the structural model the federal *Accessible Canada Act* and the five comparator provincial statutes have adopted in varying forms. The Ontario AODA documented enforcement gap (Part Two Section 2.2) establishes that statutory provisions without operational enforcement are insufficient to produce compliance. The Alberta legislation must include enforcement architecture from the outset, must staff the enforcement bodies adequately, and must apply penalties at levels sufficient to produce compliance rather than at symbolic levels that organizations can absorb as a cost of non-compliance. The architecture is developed in Section 3.5.

Choice 9: Statutorily-mandated periodic review cycle on the Manitoba precedent. The legislation must include a statutorily-mandated periodic review cycle, on the *Manitoba Accessibility for Manitobans Act* precedent (Part Two Section 2.3), under which the legislation itself, the standards developed under it, and the operational implementation are subject to independent review on a defined cycle (the Manitoba precedent is a five-year cycle). The independent reviewers must report publicly, must table their reports in the Legislative Assembly, and must propose recommendations for legislative or operational reform. The provincial government must respond to the recommendations within a defined period. The cycle is the structural mechanism through which the legislation's operational effectiveness is evaluated and improved over time. The cycle is developed in Section 3.8.

Choice 10: Coordination with existing categorical-program architecture. The legislation must coordinate with the existing Alberta categorical-program architecture (AISH, PDD, FSCD, ADAP, WCB) without displacing or substituting for it. The coordination must address the operational interfaces between the substantive-standards architecture the legislation establishes and the categorical-program architecture that operates alongside it. The coordination must also address the relationship between the legislation and the *Alberta Human Rights Act*, the existing *Alberta Building Code*, and other provincial statutes that operate in domains the new legislation will address. The coordination must address the federal architecture (the *Accessible Canada Act*, federally regulated employers, federally administered benefits including the Disability Tax Credit and the Canada Disability Benefit) that operates alongside the provincial architecture. The coordination is developed in Section 3.8.

The ten choices are mutually reinforcing rather than independently optional. The substantive design of the legislation requires all ten choices to be made together. Adopting some choices and not others produces a legislative framework that fails to address the documented Alberta record at the level of comprehensiveness the substantive-equality and systemic-transformation principles require.

What the Blueprint Will Not Do

The substantive specification Part Three develops has legitimate limits. The limits are not concessions to political opposition or to fiscal constraint; they are the appropriate scope of a substantive blueprint as distinct from the work of other instruments and other actors. Four limits are operationally significant.

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The blueprint does not provide technical legislative drafting. Legislative drafting is a specialized craft conducted by legislative counsel and parliamentary draftspersons in the Government of Alberta's Legislative Counsel Office and in the Legislative Assembly's drafting services. The substantive specification Part Three develops is the input to legislative drafting, not the output. The blueprint specifies what the legislation should do; the legislative drafting specifies how the legislation should be expressed in statutory language. The two are complementary stages in the legislation's development. The blueprint's role is to ensure that the substantive design choices are made deliberately and in alignment with the documented Alberta record and the international human rights obligations, before legislative drafting begins. Once legislative drafting begins, the drafters' technical expertise governs the precise statutory language; the blueprint's role is consultative rather than dispositive at the drafting stage.

The blueprint does not specify exact dollar amounts. The funding-floor and staffing-ratio provisions Choice 7 establishes are substantively specified (the floors must be calibrated to defined benchmarks; the ratios must be sufficient to deliver inclusive education) but are not specified in exact dollar amounts. Exact dollar amounts are subject to fiscal-year budgeting processes, to economic conditions, to inflationary adjustments, and to the political-economic realities within which provincial-government budgeting operates. The blueprint specifies the substantive principles within which dollar amounts are determined: the per-student funding floor must reach the national average within a defined timeline; the EA staffing ratios must deliver inclusive education without forcing displacement to segregated settings. The exact amounts at which these substantive standards are met are determined through the budgeting process within the substantive framework the legislation establishes. The blueprint's substantive specification is sufficient to guide the budgeting; the budgeting itself is the responsibility of the Treasury Board and the Legislative Assembly.

The blueprint does not propose constitutional amendment. The legislation operates within the existing Canadian constitutional framework. Constitutional questions related to the *Charter of Rights and Freedoms*, to the federal-provincial division of powers, and to Section 35's recognition of Aboriginal and treaty rights are addressed where they are operationally relevant to the legislation's substantive provisions, but the legislation itself does not propose constitutional change. The substantive design works within the constitutional space the existing framework provides. Where the existing framework imposes operational limits (for example, that federal jurisdiction over food and drug regulation means the legislation cannot directly regulate food contaminants that contribute to disability prevalence), those limits are acknowledged and addressed through coordination with federal authority rather than through provincial-jurisdictional overreach.

The blueprint does not displace federal jurisdiction. The legislation operates in the provincial sphere. The federal *Accessible Canada Act* operates in the federal sphere. The two are coordinated rather than competitive. The legislation does not attempt to regulate federally regulated employers, federally administered benefits, or federally regulated industries (banking, telecommunications, broadcasting, federally regulated transportation). The legislation does provide for coordination with the federal framework where the operational interfaces require it, particularly in respect of the Disability Tax Credit, the Canada Disability Benefit, the Canada Pension Plan Disability program, and Jordan's Principle and other federal Indigenous-disability programs. The coordination is developed in Section 3.8.

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The four limits maintain the blueprint's substantive integrity. The blueprint does what a substantive specification should do (specify the substantive design choices the legislation must make) without attempting work that belongs to other instruments (technical legislative drafting, fiscal-year budgeting, constitutional amendment, federal-jurisdictional regulation). The discipline is the substantive expression of the principle that the blueprint is one component of a multi-component legislative-development process; the other components are the responsibility of other actors operating within their respective competences.

The Architecture of Part Three

Part Three develops the substantive content of the foundational design choices across nine sections plus a Source Index. The sections are structured as follows.

Section 3.1 (the present section) sets out the design philosophy and foundational choices. Section 3.1 is the framing section that anchors everything subsequent.

Section 3.2 develops the definitions and scope provisions: the substantive definition of disability the legislation will adopt (the social-model definition, oriented toward barrier removal rather than impairment characterization), the definition of barrier (the comprehensive definition that covers attitudinal, environmental, technological, communication, and systemic barriers), the coverage provisions (which organizations and which activities the legislation regulates), and the substantive-standards areas (the operational domains within which the standards are developed).

Section 3.3 develops the substantive-standards areas in summary: the eight areas the legislation will establish, with brief substantive specifications for each. The eight areas include built environment, information and communications, employment, transportation, customer service and design of services, education (developed in detail in Section 3.4), health, and goods and procurement.

Section 3.4 develops the education-area standard in detail. Education receives standalone development because the substantive content is more extensive than the other standards areas and because the substantive content is grounded in the engineered-repudiation analysis of Sections 1.3a and 2.7a. The detailed development addresses the inclusive-education baseline, the funding-floor provisions, the EA staffing-ratio provisions, the segregated-setting transition pathway, the seclusion-room prohibition, the consultation-requirement provisions, and the public-record reporting cycle.

Section 3.5 develops the implementing architecture and enforcement provisions: the lead-Minister role, the Standards Development Committees, the Disability Community Advisory Council, the Director of Compliance and Enforcement, the inspectors and their statutory authority, the compliance-order procedure, the administrative-monetary-penalty regime, and the tribunal-review procedure.

Section 3.6 develops the consultation requirements and Indigenous-rights integration: the Article 4(3) operational requirements, the disability-community consultation infrastructure, the Indigenous-rights structural integration on the British Columbia precedent, and the relationship to the Truth and Reconciliation Commission and MMIWG2S frameworks.

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Section 3.7 develops the implementation timeline and funding-and-resourcing provisions: the staged implementation calendar from Royal Assent through the major standards in force, the funding-floor and staffing-ratio provisions, the budget-coordination requirements, and the federal-coordination provisions for cost-shared programs.

Section 3.8 develops the statutory review, public reporting, and coordination provisions: the periodic review cycle, the reporter requirements, the public-tabling provisions, and the coordination with the existing categorical-program architecture, with the *Alberta Human Rights Act*, and with the federal framework.

Section 3.9 is the closing section: the constructive case, the legislative-drafting next steps, the political-moment positioning, and the substantive bridge between the blueprint and the work that legislative enactment will require.

The Part Three Source Index catalogues every statute, treaty, court decision, government document, named expert, and academic source cited across Sections 3.1 through 3.9, on the same architecture as the Part One and Part Two Source Indices.

The architecture of Part Three is, like the architecture of Parts One and Two, structured to enable independent reading of any section while ensuring that the cumulative reading produces a comprehensive substantive specification. The reader can engage with Section 3.4's education-standard specification without reading the entire blueprint; the reader who engages with the entire blueprint will find that the sections are cumulative and reinforcing.

What Section 3.1 Establishes

The substantive design of the *Alberta Accessibility and Inclusion Act* is grounded in five principles — substantive equality, systemic transformation, lifecycle integration, international compliance as floor not ceiling, and disability-community co-authorship — and operationalized through ten foundational design choices: comprehensive single-statute approach, substantive-standards model, lifecycle integration across standards areas, Article 24 operationalization within an education-area standard, Indigenous-rights structural integration on the British Columbia precedent, Article 4(3) consultation as procedural baseline, funding-floor and staffing-ratio provisions, independent enforcement architecture with administrative monetary penalties, statutorily-mandated periodic review on the Manitoba precedent, and coordination with the existing categorical-program architecture.

The blueprint Part Three develops has legitimate limits: it does not provide technical legislative drafting, does not specify exact dollar amounts, does not propose constitutional amendment, and does not displace federal jurisdiction. The limits maintain the blueprint's substantive integrity as one component of a multi-component legislative-development process.

The architecture of Part Three develops the substantive content across nine sections plus a Source Index. The sections proceed from the foundational framing established in Section 3.1, through the definitions and scope provisions in Section 3.2, the substantive-standards areas in Sections 3.3 and 3.4, the implementing architecture in Section 3.5, the consultation requirements and Indigenous-rights integration

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in Section 3.6, the implementation timeline and funding-and-resourcing provisions in Section 3.7, the statutory review and coordination provisions in Section 3.8, and the closing constructive case in Section 3.9.

The constructive work begins. The case for the legislation has been made on the documented record of Parts One and Two. Part Three specifies what the legislation should do. The five principles, the ten foundational choices, and the architecture of the substantive sections are the framework within which the specification proceeds.

The next section addresses the definitions and scope provisions.